

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

WAYNE SCOTT,

Plaintiff,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; SGT. BORIS DUREPS, Tax #
938414; P.O. MARK KOSTA, Tax # 949180; P.O. NAWAZUH
HAQUE, Tax # 957658; and P.O. JOHN DOE # 1, the individual
defendant(s) sued individually and in their official capacities,

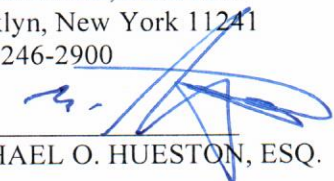
Defendants.

Index:Basis of Venue: occurrence of
incident – Lexington Avenue and
Classon Avenue, Brooklyn, New
York

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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
March 22, 2017MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York
10007; and SGT. BORIS DUREPS, Tax # 938414; P.O. MARK KOSTA, Tax # 949180; P.O.
NAWAZUH HAQUE, Tax # 957658; and P.O. JOHN DOE # 1, 88th Precinct, 298 Classon Ave,
Brooklyn, NY 11205

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WAYNE SCOTT,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index:

THE CITY OF NEW YORK; SGT. BORIS DUREPS, Tax # 938414; P.O. MARK KOSTA, Tax # 949180; P.O. NAWAZUH HAQUE, Tax # 957658; and P.O. JOHN DOE # 1, the individual defendant(s) sued individually and in their official capacities,

Basis of Venue: occurrence of incident – Lexington Avenue and Classon Avenue, Brooklyn, New York

Defendants.

-----X

Plaintiff Wayne Scott, by and through his counsel, Michael Hueston, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about February 27, 2016. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conversion/trespass of chattels; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages, declaratory

relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office addresses of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment. Plaintiff has testified at a 50-H hearing.

4. Plaintiff has satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Wayne Scott is a resident of the State of New York, living at 616 St. Marks Avenue, Brooklyn, New York.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

9. At all times alleged herein, defendants Sgt. Boris Dureps, Tax # 938414; P.O. Mark Kosta, Tax # 949180; P.O. Nawazuh Haque, Tax # 957658; and P.O. John Doe # 1 were employed as police officers with 88th Precinct, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

11. On February 27, 2016, at and in the vicinity of Lexington Avenue and Classon Avenue, Brooklyn, New York, several police officers operating from the 88th Precinct located in Kings County, New York, including upon information and belief, the individual defendants Sgt. Boris Dureps, Tax # 938414; P.O. Mark Kosta, Tax # 949180; P.O. Nawazuh Haque, Tax # 957658; and P.O. John Doe # 1 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On February 27, 2016 at approximately 4:00 p.m., at and in the vicinity of Lexington Avenue and Classon Avenue, Brooklyn, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

13. Plaintiff was a passenger in a van he had hired, and was returning from the Lowe's store in Fort Hamilton, Brooklyn with supplies for his friend's club located at 415 Classon Avenue.

14. Plaintiff had hired the van at Lowe's.

15. Plaintiff did not know the driver.

16. The van parked in the vicinity of 415 Classon Avenue.

17. Plaintiff gave the driver \$60, and the driver went to a store to bring back \$10 in change for plaintiff.

18. Plaintiff unloaded the supplies.

19. The police approached and detained plaintiff.

20. There was no cause or justification to detain plaintiff.

21. The police questioned plaintiff about what he was doing, and plaintiff explained that he was getting his change back and unloading supplies.

22. The police searched plaintiff without cause or justification.

23. The police found no contraband, weapons, or controlled substances on plaintiff.

24. The police handcuffed plaintiff.

25. The police shoved plaintiff from behind while he was in handcuffs.

26. The handcuffs were extremely tight, but the police ignore plaintiff's requests to loosen them.

27. The police also detained and arrested the driver.

28. The police placed plaintiff in a police vehicle and transported him to the 88th Precinct for processing.

29. The police seized plaintiff's money in the amount \$1,037.05 without a basis to do so.

30. The police without any basis declared plaintiff's money to be arrest evidence subject to forfeiture.

31. Plaintiff is a diabetic and suffers from high blood pressure.

32. Plaintiff told the police that he needed his medication, but the police ignored his requests.

33. Plaintiff became dizzy and experienced a headache because of the lack of his medication.

34. Plaintiff complained to the police about their conduct.

35. The police transported plaintiff to Brooklyn Central Booking for arraignment.

36. Plaintiff was detained at Central Booking.

37. In order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, including criminal possession of a controlled substance; however the District Attorney declined to prosecute plaintiff, and plaintiff was released from Central Booking without being charged with any crime.

38. Plaintiff was humiliated and embarrassed by the experience.

39. Plaintiff's seized money has still not been returned to him.

40. Plaintiff suffered financial loss.

General Allegations

41. Plaintiff did not resist arrest at any time during the above-described incidents.

42. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

43. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

44. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

45. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

46. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendants unlawfully searched and seized plaintiff without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

49. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants unlawfully searched and seized plaintiffs without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

52. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

55. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

58. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. The individual defendants' use of force upon plaintiff was objectively unreasonable.

61. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

62. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

63. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

66. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. Among other things as described above, the individual defendants' false arrest, and unreasonable use of force against plaintiff were illegal physical contacts.

69. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM**(FAILURE TO INTERVENE)**

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

72. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM**(CONVERSION/TRESSPASS OF CHATTELS)**

73. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

74. Plaintiff had clear legal ownership to possession of the property described above and defendants converted plaintiff's property by damaging and allowing items to be stolen.

75. Accordingly, defendants are liable to plaintiffs for damages that resulted from the conversion under New York State law.

TENTH CLAIM**(MONELL CLAIM)**

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

78. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) arresting innocent persons in order to meet productivity goals and without cause; (2) using unreasonable force on individuals; (4) seizing property; and (4) fabricating evidence against innocent persons.

79. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

80. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

81. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

82. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

84. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

ELEVENTH CLAIM

(RESPONDEAT SUPERIOR)

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The individual defendants were acting within the scope of their employment when they committed the above described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

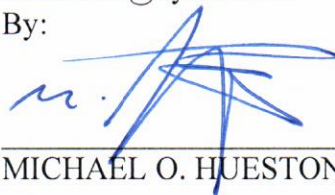
87. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
March 22, 2017

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

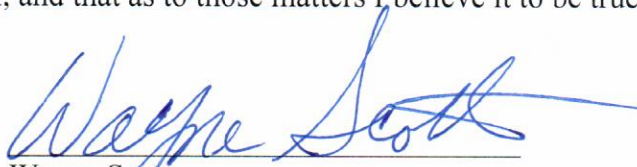
By:



MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, Wayne Scott, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

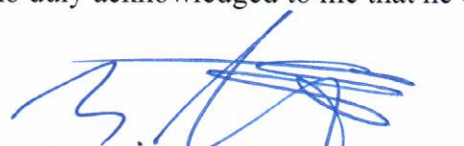

Wayne Scott

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 22nd day of March, 2017, before me personally came and appeared WAYNE SCOTT to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

WAYNE SCOTT,

Plaintiff,

-against-

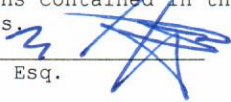
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 3/22/2017 Signature: 
Michael Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2017

....., Esq.

Attorney for.....